

Court No. - 3

Case :- WRIT - C No. - 19417 of 2016

Petitioner :- Arjun Kumar

Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Rajnish Dubey

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Vinod Kumar Misra, J.

It is contended that there are outstanding arrears of electricity dues against the petitioner and without any notice, recovery proceedings have been initiated.

Sri Chandan Agarwal who has accepted notice on behalf of respondent Nos. 4 and 5 prays for and is allowed one week's time to seek instructions in the matter.

Put up this case as fresh on 18th May, 2016. Till then, no coercive process shall be taken against the petitioner in pursuance to the recovery citation dated 11.1.2016.

Order Date :- 29.4.2016

AS

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Respondent :- State Of U.P. And 4 Ors.

Counsel for Petitioner :- Rajnish Dubey

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Prashant Kumar,J.

Heard learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for respondent nos. 4 and 5 and learned Standing counsel for the State respondents.

It is contended on behalf of the petitioner that since he did not receive the copy of the provisional assessment notice, as such, he could not submit his reply and in absence whereof the respondent treated it to be final and issued recovery certificate.

Learned counsel appearing for the petitioner has invited our attention to the contents of the notice dated 24.2.2016 as well as the provisions contained under Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005. The argument is that the respondent-corporation while issuing the provisional assessment notice was required to fix a date in the notice itself for hearing so that the consumer could appear before the authority concerned on the date so specified.

From the perusal of the assessment order, it does not appear that any date was indicated in the notice for hearing in the matter and in such circumstances, the contention of the petitioner that notice itself was not in accordance with the requirement of law, appears to have substance.

This Court in *Ashok Kumar & Ors. Vs. State of U.P. & Ors., 2008(6) ADJ 660 (DB)* from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

In the present case, we find that provisional assessment notice does not give the basis on which petitioner was assessed to pay Rs. 79,542/-. The notice also does not specify the date for hearing, which was required under the Code.

In view of the fact that notice for provisional assessment issued to the petitioner itself was not in accordance with law, we are of the opinion that petitioner was not afforded adequate opportunity as provided in para 6.8(b) of U.P. Electricity Code, 2005.

Consequently, the writ petition is allowed. The impugned notice dated 24.2.2016 and the recovery citation dated 11.1.2016 are hereby quashed. The respondents are directed to prepare a fresh provisional assessment order and serve the same upon the petitioner within 15 days from the date of production of a certified copy of this order. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in *Ashok Kumar (supra)*.

Order Date :- 23.5.2016/OP